Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1052
Claimant:	Derrick Hernandez
Adjuster:	Valerie Rodriguez

2025-06-24 - Reviewed the first notice of loss for a left-turn collision at an intersection. Insured reports the other vehicle came through on a green light while the insured was turning across the oncoming lane. Initial scene photos requested from both drivers. Liability currently unclear pending statements.

2025-06-27 - Recorded recorded statement from the insured. Insured states they checked for oncoming traffic, saw the other vehicle at a distance, and believed the gap was sufficient. Insured confirms no prior issues with this intersection. Police report requested and not yet received.

2025-07-01 - Claimant's attorney has contacted the desk and advised that all communication should now go through their office. Claimant reports a knee injury from the impact and is seeking medical evaluation. Medical authorization requested through counsel. Diary set for follow-up in two weeks.

2025-07-10 - Reviewed the police report. Responding officer noted the other driver's vehicle was in motion at the time of impact and cited the insured for failure to yield on a left turn. Witness contact informtaion listed on report. Reached out to the witness for a statement. Liability leaning toward insured based on current information.

2025-07-11 - Spoke with claimant's counsel regarding the knee injury. Counsel is requesting a medical records package and imaging before discussing settlement posture. Advised counsel that liability review is ongoing. Supervisor notified of represented status and potential bodily injury exposure. File flagged for senior review.

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Recorded Statement

Claim number:	C-1052
Statement of:	Derrick Hernandez
Taken by:	Valerie Rodriguez
Date:	2025-06-24

Q: Thanks for taking the time to speak with me today. This recorded statement is about the collision you were involved in. Do you understand that this call is being recorded?

A: Yes, I understand.

Q: Please state your full name and the date of the accident for the record.

A: I'd rather not give my full name on the recording right now, but I can confirm I was driving the vehicle. The accident happened a few weeks ago, in the late afternoon.

Q: That's fine. Can you tell me where the accident took place?

A: It was at an intersection in Katy, Texas. I was making a left turn onto the main road from a shopping center parking lot.

Q: Walk me through what happened as you began the turn.

A: I waited for a gap in traffic and saw the oncoming car was a fair distance away, so I started to go. The ohter vehicle came in faster than I expected, and we collided on the driver's side of my car.

Q: Did you see a traffic signal at that intersection?

A: Yes, my lihgt was green for the turn, though I think the oncoming light had just changed to yellow.

Q: Were you injured?

A: Yes. My left knee hit the dashboard and the door frame. It swelled up right away and I can barely bend it. I went to urgent care that evening and I'm scheduled to see an orthopedic doctor next week.

Q: Are you currently receiving any treatment or taking any medication for the knee?

A: I'm taking over-the-counter pain relievers and using ice. I've been told I may need an MRI.

Q: Thank you. Is there anything else you'd like to add to your statement?

A: Only that I'm willing to provide my medical records and the photos I took at the scene.

Q: Thank you. This concludes the statement.